

Opinion of the Court



Later that afternoon, Agent Egbert observed one of Boule’s vehicles—a black SUV with the license plate, “SMUGLER”—returning to the Inn. Agent Egbert suspected that Boule’s Turkish guest was a passenger and followed the SUV into the driveway so he could check the guest’s immigration status. On Boule’s account, the situation escalated from there. Boule instructed Agent Egbert to leave his property, but Agent Egbert declined. Instead, Boule claims, Agent Egbert lifted him off the ground and threw him against the SUV. After Boule collected himself, Agent Egbert allegedly threw him to the ground. Agent Egbert then checked the guest’s immigration paperwork, concluded that everything was in order, and left. Later that evening, Boule’s Turkish guest unlawfully entered Canada from Smuggler’s Inn.

Boule lodged a grievance with Agent Egbert’s supervisors, alleging that Agent Egbert had used excessive force and caused him physical injury. Boule also filed an administrative claim with Border Patrol pursuant to the Federal Tort Claims Act (FTCA). See 28 U.S.C. §2675(a). According to Boule, Agent Egbert retaliated against him while those claims were pending by reporting Boule’s “SMUGLER” license plate to the Washington Department of Licensing for